

NOTICE OF CLAIM PURSUANT TO SECTION 768.28(6), FLORIDA STATUTES

Date: December 2, 2024

TO: Lee County Board of County Commissioners, P.O. Box 398, Fort Myers, FL 33902
Florida Department of Financial Services, 200 East Gaines Street, Tallahassee, FL 32399

FROM: Margaret A. Calloway, Claimant, 1487 Coronado Pkwy, Cape Coral, FL 33904

RE: Notice of Claim — Negligent Operation of Stormwater Pump Station

Please take notice that Claimant Margaret A. Calloway intends to assert a claim against Lee County, a political subdivision of the State of Florida, pursuant to Section 768.28, Florida Statutes.

NATURE OF CLAIM: On the night of September 26, 2024, during the hurricane, Lee County stormwater pump station #7 located on the Coronado Canal adjacent to Claimant's residence ceased operating. The County's negligent operation and maintenance of the pump station — an operational-level function — caused or substantially contributed to canal overflow and the inundation of Claimant's property at 1487 Coronado Pkwy, Cape Coral, Florida.

DAMAGES: Property damage to the dwelling and contents, loss of use, and related consequential damages. Claimant acknowledges that recovery against the County is subject to the statutory limits of Section 768.28(5), which cap liability at \$200,000 per person and \$300,000 per incident, absent a legislative claims bill.

This notice is presented in compliance with Section 768.28(6)(a), Florida Statutes, which requires written notice to the appropriate agency and to the Department of Financial Services as a condition precedent to suit. Claimant has not yet filed suit and will not do so until the statutory pre-suit period has elapsed or the claim is finally denied.

Respectfully submitted,
Counsel for Claimant Margaret A. Calloway